

Baby Chakraborty vs Utpol Kumar Chakraborty on 20 August, 2021

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Bench: Manish Choudhury

Page No.# 1/7

GAHC010220562019

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Tr.P.(C)./75/2019

BABY CHAKRABORTY
W/O- SRI UTPOL KUMAR CHAKRABORTY, D/O- LT. DILIP CHAKRABORTY,
PRESENT RESIDENT OF VILL. - RAMKRISHNAPOLLI (UDALGURI), P.S.
AND P.O. UDALGURI, DIST- UDALGURI, ASSAM. PIN- 7840509.

VERSUS

UTPOL KUMAR CHAKRABORTY
S/O- LT. AMULYA KR. CHAKRABORTY, R/O- BASUGAON THANA ROAD,
P.O. AND P .S. BASUGAON, DIST.- CHIRANG, ASSAM, PIN- 783322.

Advocate for the Petitioner : MR H K MAHANTA

Advocate for the Respondent : MR. S C BISWAS

BEFORE
HONOURABLE MR. JUSTICE MANISH CHOUDHURY

ORDER

Date : 20-08-2021 Heard Mr. H.K. Mahanta, learned counsel for the petitioner and Ms. L. Choudhury, learned counsel appearing on behalf of Mr. S.C. Biswas, learned counsel for the respondent.

2. By this petition under Section 24, Code of Civil Procedure (CPC), the petitioner has sought for transfer of the proceeding of Title Suit (Divorce) Case No. 17/2019, presently pending before the Court of learned District Judge, Chirang at Kajalgaon, to the Court of learned District Judge, Udalguri at Udalguri.

3. Projection is made to the effect that the respondent has filed a petition under Section 13 of the Hindu Marriage Act, 1955, as amended, before the learned District Judge, Chirang at Kajalgaon seeking dissolution of his marriage with the petitioner by a decree of divorce. The said petition has been registered and numbered as Title Suit (Divorce) Case No. 17/2019.

4. The marriage between the petitioner and the respondent was solemnized on 29.04.2017 as per Hindu customs and rites at Udalguri in presence of relatives and friends.

5. In his petition in Title Suit (Divorce) Case No. 17/2019, the respondent has, inter-alia, averred that after solemnization of the marriage, the parties started living and cohabiting as husband and wife at the house of the petitioner at Village - Basugaon, Police Station - Basugaon, District - Chirang. The respondent has alleged that the respondent and the petitioner lived together for a period of 1 (one) month only at the house of the respondent and thereafter, the petitioner went to her parental house at Udalguri by deserting him. He has further alleged the petitioner is an ill tempered woman and since the date of their marriage, she started inflicting mental torture upon him without any reasonable cause and he had to tolerate all such treatments just to save the marriage. According to him, the petitioner had failed to perform her marital obligations due to a relationship she maintained with another person belonging to her locality at Udalguri. It is the further allegation of the respondent that on Page No.# 3/7 05.04.2018, the petitioner left the matrimonial home with her mother on the pretext of attending works related to NRC and had not come back since then. The respondent stated to have made attempts to bring the petitioner to her matrimonial home to continue the conjugal life but the petitioner denied to come back. The respondent has further mentioned that the petitioner has filed an application before the Court of learned Chief Judicial Magistrate, Udalguri seeking maintenance. The said application has been registered as M.R. No. 63/2018. After waiting for a considerable time period expecting the return of the petitioner to her matrimonial home, the respondent has ultimately been compelled to institute the proceeding under Section 13 of the Hindu Marriage Act, 1955 seeking dissolution of his marriage before the Court of learned District Judge, Chirang. On registration of the same as Title Suit (Divorce) Case No. 17/2019, process was issued to the petitioner for her appearance.

6. The petitioner in the instant petition has averred that since after the marriage on 29.04.2017, she had to face ill treatment from the respondent and his family members. The respondent and his family members often used to insult the petitioner and her family by alleging that the articles and ornaments given at the time of marriage were of low quality and that not enough cash amount was given as dowry. After 3 (three) months from the marriage, the petitioner suffered from piles and on that issue, the respondent and his family members used to scold the petitioner by saying that had such fact of ailment been known to them they would not have got the marriage of the respondent

solemnised with the petitioner. The petitioner was never given any medical support for her ailment by the respondent and his family members. She has further alleged that she was physically assaulted by the respondent. Finding no alternatives, she had to return to her parental house with her mother in July, Page No.# 4/7 2017 in order to undergo medical treatment. When after taking medical treatment at Udalguri, she went to her matrimonial house at Basugaon with her mother and brother on 05.04.2018, she was not accepted by the respondent and his family members. The respondent threatened on that occasion that he would not maintain any relationship with the petitioner.

7. The petitioner has further contended that her father expired on 05.10.2014 leaving behind her mother and a brother. The father used to be the only bread winner in the family and after his death, the entire family has been facing financial crisis. Her brother has been managing to eke out a living by doing pujas occasionally in the nearby localities and the entire family is dependent on such meager earning of her brother. The family is somehow making both the ends meet. The petitioner has further asserted that she has no source of income whereas the respondent earns about Rs. 50,000/- per month as he is an owner of a wholesale cloth shop at Basugaon and also runs a shop selling puja articles. Faced with such situation and unable to maintain herself with no income of her own, poor financial condition of her family and no financial support from the respondent, the petitioner had to prefer an application under Section 125, Code of Criminal Procedure, 1973 before the Court of learned Chief Judicial Magistrate, Udalguri on 26.12.2018 seeking maintenance from the respondent. The said application has been registered and numbered as M.R. Case no. 63/2018.

8. If the petitioner is made to attend the proceeding of Title Suit (Divorce) Case No. 17/2019 at Chirang at Kajalgaon, a place at a distance of about 250 Km from Udalguri, the petitioner will face immense inconvenience as there is no one in her family except her mother and brother. Her mother is not in a position to accompany her because of her old age and ailment. The brother of the Page No.# 5/7 petitioner as a priest is not in a position to accompany her as he has to manage the family by doing pujas. On the other hand, the inconvenience likely to be faced by the respondent if he is made to attend the proceeding at Udalguri, is comparatively much lesser than the inconvenience likely to be faced by the petitioner if she is made to attend the proceeding at Kajalgaon. Moreover, the respondent has the financial capacity to attend the proceeding at Udalguri. The respondent after receipt of notice in connection with the maintenance proceeding, M.R. Case no. 63/2018 has already been attending the Court of learned Chief Judicial Magistrate, Udalguri and is contesting the same.

9. This court by order dated 13.09.2019, has stayed, in the interim, the further proceeding in connection with Title Suit (Divorce) Case No. 19/2019 pending before the Court of learned District Judge, Chirang at Kajalgaon. The respondent has already been contesting the proceeding of M.R. Case no. 63/2018 at Udalguri. In the affidavit-in-opposition filed by the respondent in the case in hand the respondent has averred to the effect that he is not financial sound to contest both the cases at Udalguri as it will require frequent travelling from Chirang to Udalguri. The assertions made by the petitioner in the present petition as regards his occupation, has been traversed by the respondent by making a general denial and by stating that he is a petty businessman having marginal income. The other contentions of the petitioner, as indicated above, have not been specifically traversed by the respondent.

10. Upon consideration of the above fact situation obtaining in the case in hand, this Court is of the view that the petitioner has made out a case for transfer of the proceeding of Title Suit (Divorce) Case No. 17/2019 from the Court of learned District Judge, Chirang at Kajalgaon where it is presently pending, to the Court of learned District Judge, Udalguri at Udalguri on the Page No.# 6/7 ground that the inconvenience likely to be faced by the petitioner if she is made to attend the proceeding at Kajalgaon is more than the inconvenience likely to be faced by respondent if the proceeding is transferred to Udalguri. The grievance expressed by the respondent about attending two proceedings at Udalguri can be mitigated by bringing about the fact of pendency of the two proceedings at Udalguri before the learned Courts and the learned Court may decide about the same in a pragmatic manner by taking into account the relevant facts and circumstances. In such view of the matter, this petition stands allowed and it is ordered that the proceeding of Title Suit (Divorce) Case No. 17/2019, presently pending before the Court of learned District Judge, Chirang at Kajalgaon stands transferred to the Court of learned District Judge, Udalguri at Udalguri.

11. The Court of learned District Judge, Chirang at Kajalgaon shall make necessary arrangement to transmit the records of Title Suit (Divorce) Case No. 17/2019 to the Court of learned District Judge, Udalguri at Udalguri expeditiously. On receipt of such records, the learned District Judge, Udalguri will notify the parties by sending notices to appear on a fixed date, as permitted by the business of the Court. It is provided that the learned District Judge, Udalguri will either decide the case himself or assign it to a learned Court of competent jurisdiction in accordance with law and thereafter, the case will be proceeded with, from the stage it was pending before the Court of learned District Judge, Chirang.

12. With the above observations made and directions issued, the instant petition stands disposed of. There shall be no order as to cost.

Page No.# 7/7 JUDGE Comparing Assistant